

Multiple Choice (10 marks)

1. Which statement is closest to characterizing the principal difference between the positions adopted by Hobbes and Locke?
 - (a) They adopt different attitudes towards the role of the courts in maintaining order.
 - (b) They disagree about the role of law in society.
 - (c) They have opposing views about the nature of contractual obligations.
 - (d) They differ in respect of their account of life before the social contract.
2. How does Nozick answer the criticism of his historical entitlement theory that if the distribution of goods in society is unjust those at the bottom always lose?
 - (a) It can be remedied by redistribution of wealth.
 - (b) If each person's holdings are just, then the total distribution of holdings is just.
 - (c) Historical factors are secondary to moral imperatives.
 - (d) He has no answer.
3. Which of the following most accurately describes Hart's response to Fuller's argument concerning the invalidity of Nazi law?
 - (a) The Nazi law in question was validly enacted.
 - (b) The court misunderstood the legislation.
 - (c) Fuller misconstrued the purpose of the law.
 - (d) The Nazi rule of recognition was unclear.
4. What is passive personality jurisdiction?
 - (a) It is jurisdiction based on the nationality of the offender
 - (b) It is jurisdiction based on where the offence was committed
 - (c) It is jurisdiction based on the nationality of the victims
 - (d) It is jurisdiction based on the country where the legal person was Registered
5. Who said that "Jurisprudence is the eye of law"
 - (a) Maine
 - (b) Savigny
 - (c) Pound
 - (d) Laski

True / False (10 marks)

Answer True or False

6. True or False: Jurisdiction is ordinarily extra-territorial, allowing for legal authority over actions occurring outside a nation's borders.
7. True or False: H.L.A. Hart is the author of the influential book 'The Concept of Law'.
8. True or False: The people in the original position would choose liberty above all other principles in their social contract.
9. True or False: Holland is credited with the definition of law as a set of principles applied by the State in justice administration.
10. True or False: Third generation rights are considered more important than civil and political rights in the UN Vienna Declaration of 1993.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss why Austin is characterized as a 'naive empiricist' in his approach to law, focusing on his pragmatic conception of legal principles rather than a theoretical framework.
12. Discuss Dworkin's criticism of Posner's economic analysis of law, particularly his assertion that it fails to recognize wealth as a non-value. What implications does this have for constitutional law?

End of Paper